Musical Chairs: Frequent Judge Transfers Undermine Court Productivity in India*

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Abstract

In many parts of the world, judges are transferred or reassigned across courtrooms frequently. We argue that transfers undermine courtroom productivity. We test this proposition using big data from the courts of first instance in India, where more than 40 million cases are pending, and a research design that leverages transfers due to judge retirements at precisely the age of 60. The data suggest that judge transfers are frequent and often occur in a formulaic manner to prevent the politicized assignment of judges to courtrooms. Transfers reduce courtroom productivity, both because they create courtroom vacancies and because portions of cases that experience judge transfers are reheard. Transfers are a major, unappreciated cause of judicial delays. We demonstrate how a common and frequently well-intentioned practice—the periodic transfer of personnel—can undermine productivity.

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In many parts of the world, particularly in the Global South, court cases can take years—sometimes decades—to conclude, leading to severe court congestion. Case delays are normatively problematic and undermine the rule of law, human rights, and economic development (Voigt 2016). In this paper, we argue and show that a major cause of case delays is the frequent transfer or reassignment of judges across courtrooms. Frequent judge transfers are relatively common across the world, and their negative effects could obtain in countries as diverse as China (Zhu 2024), Japan (Ramseyer 1994), Kenya (Orina 2016; Standard Team 2015), Italy (Guerra and Tagliapietra 2017; T6 Association 2025), Nepal (Grajzl and Silwal 2020), Spain (Rosales-López 2008; Moral et al. 2025) and even the United States (Paschal 1948; O'Brien 2002).[1]

We theorize that judge transfers worsen court productivity. Judge transfers are likely to cause case delays as they increase the odds of cases being temporarily unassigned to any judge, and as new judges rehear portions of cases before they come to a decision. Transfers might have particularly deleterious effects in the Global South, where judges drive the disposition of cases, typically unconstrained by juries.

We investigate these issues in the context of India's "subordinate" or lower judiciary, which are the courts of first instance for 1.4 billion people.[2] India is a particularly useful case to study because its judicial system, modeled on Britain's and based in common law, is akin to many systems across the developing world. Alarmingly, India's lower judiciary suffers from an increasing backlog of over 40 million cases, over 40% of which have been pending for more than 3 years. This is even though Indians file among the *fewest* cases per person per year, considerably fewer than people in the United States, United Kingdom, Korea, Japan, and Malaysia (Galanter 2009). What accounts for these patterns, and what can be done to increase access to justice?

To test our theory, we leverage new "big data" on India's judges and millions of court cases,

[1] For example, judges in North Carolina's superior courts are rotated once every six months, as mandated in the state constitution. In 1914, the Chief Judge of the state argued that the "system of rotation judges is utterly indefensible. It is antiquated, expensive to the public and to the judges, and illogical in every respect. It is the chief cause of the delays and evils in our State judicial system" (Paschal 1948, 181).

[2] These courts also hear some appeals.

paired with research designs that enable causal inference. We find that judges in India are frequently transferred or reassigned between courtrooms. Our reading of judge transfer rules, interviews with judges, and data analysis suggest that a major and surprising cause of frequent judge transfers is the court's adherence to a seniority norm, designed to depoliticize the assignment of judges to courtrooms. This norm causes judges to be rematched to courtrooms based on their seniority every time a judge enters or leaves a court (courtrooms are nested within courts), setting off a chain reaction of collateral transfers. Partly as a result of this, judges in Uttar Pradesh—India's most populous state and the focus of much of our analysis—are transferred once every seven months.

We find that judge transfers worsen court productivity, wherein the average judge transfer out of a court causes the court to issue 20 fewer decisions—the equivalent of 0.4 months of lost productivity—in the three months after the transfer. This result obtains because transfers cause courts to be vacant or without judges for some time, and because new judges frequently rehear portions of cases that they inherit.

Our theory and data also allow us to speak to how the negative effects of transfers can be attenuated. We show that mass or batch transfers of judges are particularly disruptive to judicial decision-making, even as bail cases—which have to be resolved quickly—are less likely to be slowed by transfers. These results suggest that distributing transfers over time and rules for the time-bound disposal of cases could reduce the disruptive effects of transfers.

We contribute to three broad literatures in the social sciences. The first, which straddles the social sciences, examines court efficiency and largely focuses on developed countries. This literature typically examines the effects of straightforward factors such as the number of courtrooms, judges, incentives, technology, and case complexity on judicial decision-making (Ramseyer 2012; Voigt 2016). We take this literature in a new direction by arguing that seemingly innocuous and well-intentioned judge staffing decisions can also shape judge productivity.[3]

[3] In related work in economics, Grajzl and Silwal (2020) study the effect of "multi-court" judging in Nepal. Other works that also examine how extraneous factors such as lunchtime and temperatures affect decisions include Chen et al. (2016); Heyes and Saberian (2019); Danziger et al. (2011).

A second literature to which this project contributes is on the political economy of the bureaucracy in the global South. The literature on state capacity, which examines the conditions under which states invest in the bureaucracy, largely focuses on the effects of exogenous factors such as wars (Tilly 1990; Dincecco et al. 2022) and geography (Herbst 2000) on state-making. Newer works examine the effects of more endogenous factors such as the extension of the franchise (Suryanarayan and White 2021), bureaucratic embeddedness (Bhavnani and Lee 2018; Xu and Burgess 2023), identity and affirmative action (Bhavnani and Lee 2021; Ding et al. 2021), and politician-bureaucrat interactions (Bhavnani et al. 2024; Purohit 2024) on bureaucratic performance. We further this literature by examining the political economy of *judge* transfers, thereby extending the study of the bureaucracy to an understudied arm of the state: the judiciary. As we discuss below, our analysis shows how a frequently used strategy to improve bureaucratic functioning—the transfer of bureaucrats—can have negative effects.

As we show below, a major contribution of this project is to bring the two literatures above—on judicial efficiency on the one hand, and bureaucracy on the other—into conversation with one another. In doing so, we can examine the effects of the judicial bureaucracy on decision-making in India.

A third, smaller literature that this project deepens is the political science and economics work on the Indian judicial system (see Muralidharan 2024 for a recent synthesis). These works have largely focused on the developmental effects of judicial delays (Chemin 2009, 2012; Rao 2024), arguing that these undermine relational contracting and access to credit. A smaller strand has focused on the important issue of judicial bias (Ash et al. 2025; Jassal 2024) and the effects of religiosity and religious riots (Bharti and Roy 2023; Mehmood et al. 2023), temperature (Craigie et al. 2023), the media (Vasishth 2022), and legal aid (Bharti and Lehne 2024) on judicial decision-making.[4] Papers have also focused on the question of judicial independence (see Aney et al. 2021 and Goto 2026), and no works we know of focus on the determinants of judicial efficiency. The latter is a pressing concern, as the country's lower judiciary has an extraordinarily high pendency

[4] For a newer agenda on access to justice, see Bhogale (2026).

despite having few case filings relative to the population.

1 Theoretical Framework

To theorize about the consequences of frequent judicial transfers, we start by defining judge transfers as any staffing decision that results in changes in the assignment of judges to courtrooms. Transfers could occur due to judge promotions, retirements, or other reasons. In most contexts, senior judges, bureaucrats and/or politicians are responsible for judge transfers (Malleson and Russell 2006).

The assignments of judges to courtrooms are usually subject to formal and informal rules, designed to insulate judges from political pressure while ensuring the efficient and equitable development and allocation of talent across space and time. Many bureaucracies follow two dictates in this regard. The first is that individuals, in this case judges, cannot be assigned to the regions they are from, to prevent nepotism. The second is that judges are periodically transferred—frequently in a rule-based manner—to reduce judge corruption, increase judicial independence, develop their skills, and to meet administrative needs. Indeed, these are the standard rationales for transfers outlined in bureaucratic manuals and studies of public administration (Iyer and Mani 2012; Northcote and Trevelyan 1854). The legalistic adherence to rules—in this case, transfer rules—is thought to be a necessary feature of a neutral state, designed to insulate officials from local politics (Mangla 2024; Scott 2020; Honig 2018).

Transfers are typically justified on three grounds. First, they serve as an "anti-entrenchment" mechanism: by limiting a judge's tenure in any one location, the system seeks to sever potential ties between judges and local elites before they result in corruption (Iyer and Mani 2012). Second, transfers are thought to build human capital by exposing judges to diverse legal environments—from agrarian disputes in rural areas to complex litigation in urban centers—thereby cultivating "generalist" expertise. Third, the system theoretically provides High Courts with the administrative flexibility to reallocate judicial capacity to districts with higher caseloads. In this paper, we focus on studying the *costs* of transfers, and leave it to other work to document their *benefits*.

To theorize about the costs of judge transfers, we consider their effects at the courtroom and case levels. When judges are transferred out of a courtroom, almost all undecided cases remain in the original courtroom.[5] The courtroom may remain vacant for a while before being assigned a new judge. Transfers are more likely to cause judge vacancies since not all transfers out of or away from a courtroom, particularly ones carried out at short notice, can immediately be met with simultaneous transfers into that courtroom. Replacement judges might not be available or might simply take some time to report for duty. This pattern of transfers causing vacancies has been noticed in Italy (Guerra and Tagliapietra 2017). A vacant court, of course, cannot issue decisions. Transfers, therefore, reduce courtroom productivity. Cases that are unassigned to judges are less likely to be decided.

Transfers are also likely to reduce court productivity and decrease the chances a case will be decided since judges' ability to be productive will be temporarily attenuated after transfers. New judges will take time to adjust to their new caseload and staff (see also Grajzl and Silwal 2020), slowing proceedings in the new courtroom for some time after the transfer. Additionally, new judges may require portions of inherited cases to be reheard as they familiarize themselves with old matters, particularly if the written record is unclear or if judges prefer to personally examine witnesses and lawyers.

In theory, transfers could have an anticipatory effect, even before they occur. Much as term limits are thought to undermine leader incentives, judges faced with an impending transfer could face the temptation to leave cases for the next judge. Judges who know that they are about to be transferred will also spend time preparing for their relocation, which will undermine their productivity. On the other hand, impending transfers could also cause judges to speed up the disposal of some cases, such as those for which hearings have been completed and the court has yet to issue a decision. As

[5] In our data, 3.2% of cases were taken with judges when they moved to a new courtroom. Such case rather than judge transfers do not appear to slow decision-making to a significant degree. This is perhaps unsurprising since judges are only allowed to take cases with them if they are close to a decision (that is, if they have fully heard lawyers, witnesses, etc.).

we describe below, we do not expect either anticipation effect to obtain in the Indian context because transfers are typically announced very soon (two to four weeks) before they are effectuated, and since the annual reviews that India's judges are subjected to incentivize judges to be as productive as possible.

Having theorized about the possible effects of transfers on judge decision-making, we also consider ways to attenuate these effects.

One way to reduce the negative effects of transfers would be to better stagger them throughout the year. For reasons of administrative convenience, bureaucracies tend to process transfers in large batches at particular times of the year. Such mass transfers might be less disruptive to judge productivity because they are planned in advance and so might be less likely to result in judge vacancies. On the other hand, mass transfers might be more likely to be disruptive to court productivity than staggered ones because the simultaneous change of lots of judges in a court is more likely to overwhelm the administrative staff, which might cause more hearings.

A second way to reduce the effects of transfers is to ensure that cases are decided quickly. Indeed, most judicial systems are able to decide some cases—such as bail cases—quickly. Quick disposal rates ensure that fewer cases are "at risk" of being subjected to judge transfers since they will be decided and therefore exit the court system speedily. This reasoning is not tautological. It is not that quick disposal rates cause quick disposals. Rather, it is that a quicker process ensures that fewer cases bear the brunt of the negative effects of transfers.

Our theory implies that the negative effects of transfers will be most pronounced where three conditions hold. First, transfers must be sufficiently frequent that disruptions recur before judges and courtrooms can fully recover. Second, there must be a large stock of pending cases, so that many cases are exposed to each transfer. Where cases are resolved quickly, few will be affected by any given transfer, muting its effects. Third, judges must set the pace of case disposal so that the reassignment of a judge directly disrupts a case's trajectory. Where parties and their lawyers drive the litigation calendar, as in some adversarial systems, a change in judge may be less consequential.

These conditions are satisfied to varying degrees in judicial systems around the world, and we return to the question of external validity later in the paper.

Having outlined our theoretical expectations about the consequences of judicial transfers for court productivity and possible ways to reduce the costs of transfers, we highlight why India is a good case to study and note some of its relevant characteristics.

2 India's Lower Judiciary: Massive Judicial Delays Despite Few Case Filings

India's legal system is based on common law and was inherited mainly from the British. In this respect, it is similar to the legal systems of more than 40 other common law countries and many more countries with mixed legal systems (Kritzer 2002), several of which also suffer from judicial delays (Dakolias 2014). The Indian judicial system is also relatively open, in that rich data on its courts are posted online. As such, studying the Indian judicial system is possible, and insights from such studies could apply to other developing countries with common law systems and judicial delays.

The Indian judiciary is made up of the upper (the Supreme Court of India and the country's 25 High Courts—these are constitutional courts) and the lower judiciary (there are over 14,000 of these courts of first instance). Case pendency is high across the judiciary and is among the worst in the world. The lower courts—the focus of our study—account for most pending cases. Despite being a federal country, India's judicial system is unitary in that it applies and interprets the country's federal and state laws to the cases before it.

India's courts are staffed by professional judges who are (with some exceptions) generalists, that is, they largely do not specialize in adjudicating specific matters (except for most but not all tax matters, which separate revenue courts handle). Therefore, judges of the same level of seniority can be transferred at will because their skill sets are comparable. In the lower judiciary, judges sit singly (rather than in benches with multiple judges) to decide cases. They are assisted in their work by professional staff, including "readers," stenographers and clerks.

The country's lower courts are created by state governments, and they are staffed by judges recruited directly from law schools or the State Bar Associations using meritocratic selection procedures, including exams and interviews. The lower judiciary has a lot of judge vacancies, with approximately 25% or 5,000 positions vacant. Once recruited, judge promotions and transfers across and within India's administrative districts occur at the behest of "collegiums" of up to three of the senior-most judges in the state High Courts (the equivalent of US Circuit Courts), with inputs from the senior-most judges in each district. Although state and national level politicians have no de jure role in this process, a political economy approach suggests that there could be unofficial channels of influence. We return to this issue later.

Judges in India's lower courts are evaluated annually using Annual Confidential Reports. Although the precise rubric for these evaluations varies by state, all evaluation systems place great weight on the number of decisions issued (Deva Rao et al. 2018). The evaluation system has been criticized for emphasizing quantity over quality (Gupta and Bolia 2024).

Judge transfers are supposed to occur based on staffing needs, subject to rules and norms designed to ensure the even development and application of talent across space and a lack of corruption. To these ends, judges are not allowed to work in their home districts, and cross-district judge transfers are mandated every three years. In subsequent sections, we describe how transfers operate in practice, showing that there are many more transfers than mandated. We then turn to estimating the costs of judge transfers.

3 Research Designs and Big Data

To examine the degree to which judge transfers slow decision-making, we conduct analyses at the courtroom and case levels. At the courtroom level, we draw on a panel dataset of 2,549 courtrooms observed monthly between 2015 and end-2018 to model our main outcome of interest—the number of decisions issued by a courtroom in a month-year—as a function of transfers and its leads and lags. The number of decisions issued by a courtroom is a standard measure of judicial productivity used to evaluate judges across the world, by academics and practitioners (Ramseyer 2012; Voigt 2016; Deva Rao et al. 2018).

A standard analysis of the courtroom-month panel dataset would estimate the following two-way fixed effects equation.

$$Y_{ct} = \alpha + \beta Transfers_{ct} + \delta_c + \gamma_t + \epsilon_{ct} \tag{1}$$

wherein the outcomes (the number of decisions and court vacancies) for a courtroom c in month t are modeled as a function of an indicator for whether the courtroom experienced the transfer out of its judge ($Transfers_{ct}$) and courtroom (δ_c) and month-year (γ_t) fixed effects. Standard errors are clustered at the courtroom level. A recent literature suggests that the two-way fixed effects estimator is problematic if treatments are staggered and effects are heterogeneous across units or over time (Goodman-Bacon 2021; De Chaisemartin and d'Haultfoeuille 2020). We therefore use the dynamic difference-in-difference estimator due to De Chaisemartin and d'Haultfoeuille (2024). This estimator is robust to heterogeneous effects and is well-suited to cases such as ours, where the treatment is binary and turns on for one period at a time (in other words, it is non-absorbing).[6] It compares switchers (courtrooms where the treatment changes) and nonswitchers (courtrooms where the treatment remains the same) with the same baseline treatment, and allows for dynamic effects.

Court productivity in the wake of a judge transfer out will likely depend on the kind of judge that is transferred in. We do not focus on studying the effects of incoming judge characteristics since these are post-treatment, that is, they are assigned after the transfer out of the previous judge.

For our case-level analysis, we turn to our dataset of the over 7 million cases filed in Uttar Pradesh between 2015 and 2018, and estimate the following equation using a fixed effects linear probability model.

$$Y_{ir} = \alpha + \beta Transfers_{ir} + \gamma X_{ir} + \delta_c * \zeta_r + \eta_t + \epsilon_{ir} \tag{2}$$

[6] Other new estimators, such as due to Callaway and Sant'Anna (2021) and Sun and Abraham (2021) are for absorbing treatments and therefore cannot be used here.

This equation relates our outcome variables (an indicator for whether a case i in courtroom r is decided by end-2021, and the number of hearings and spells for which the case was unassigned to a judge) to the number of transfers ($Transfers_{ir}$) experienced by the case, controlling for a vector of case-specific controls (X_{ir}), filing month-year fixed effects (η_t), and case type (δ_c)[7] and courtroom (ζ_r) fixed effects and their interactions. Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the parties' gender and whether they are the government. Standard errors are clustered at the courtroom-case type level.

We code a courtroom as experiencing a judge transfer if the judge assigned to it is moved out. As we will describe later, such judge reassignments could be prompted by various factors, including the rule that judges are transferred across districts once every three years, judge promotions, and retirements. When court cases are filed, the court administration or registrar assigns them to courtrooms in an arbitrary manner (Ash et al. 2025; Rao 2024), where they typically stay until decided.[8] A court case is therefore coded as experiencing a judge transfer when a judge assigned to its courtroom is moved out. Since courtrooms often experience several judge transfers over time, the key independent variable for our case-level analysis is the count of all such judge reassignments.

Although our selection-on-observables strategies for the courtroom and case-level analyses control for a wide range of confounds, unobserved confounding could still theoretically bias the estimated effects of transfers. To better isolate the causal effect of judge transfers, for both the courtroom and case-level analyses, we focus on transfers due to retirements. The courts we study have a mandatory judge retirement age of 60, and judges do in fact retire the day they turn 60. This renders the assignment of these transfers plausibly exogenous to courtrooms and cases, which allows us to more credibly estimate the causal effect of transfers. As we show below, the local

[7] We code cases as falling into four mutually exclusive, collectively exhaustive types: civil cases, criminal cases, bail cases and other cases. See Appendix A for coding rules.

[8] Cases have to be filed in the nearest court that decides the concerned case type. For example, junior division courts hear more minor matters, whereas senior division courts hear more major matters involving disputes over larger amounts or penalties. Once cases are filed in the nearest court, they are assigned to courtrooms within that court randomly, as outlined in the "Case Management through CIS" manual (e-Committee, Supreme Court of India 2018, 14).

average treatment effects of retirements are broadly similar to the effects of other transfers.

A potential concern with this specification is that cases pending longer may mechanically accumulate more transfers while also being less likely to be decided by the end-2021 censoring date, generating a spurious negative association. Our design addresses this in several ways. Filing month-year fixed effects ensure that cases are compared only within the same filing cohort, equating the calendar-time window over which each case could accumulate transfers. Case complexity controls—specifically, act fixed effects and the number of sections a case is filed under—absorb variation in case difficulty that could simultaneously drive longer duration and more transfers. We further address this concern in two robustness checks. The first re-measures both transfers and the outcome within the same window from filing, thereby severing the link between case duration and transfer accumulation entirely. The second is a hazard analysis that models time to decision explicitly and treats transfers as time-varying covariates, so that the effect of transfers is identified from within-case variation in exposure rather than from differences in case duration.

We draw on two datasets from Uttar Pradesh, India's largest state with a population of over 240 million, for our analyses. These were created by scraping judge and case data from the country's eCourts platform (since around 2006, India's courts have been required to upload a range of data to this website), and from current and previous versions of the websites of the Allahabad (that is, Uttar Pradesh) High Court and district courts.[9] Dataset construction details are provided in Appendix A.

The first, courtroom-month panel dataset describes courtroom productivity and judge transfers across 2,549 courtrooms between January 2015 and December 2018. In Appendix Figure B1, we graphically depict the substantial variation in treatment (that is, the transfer of a judge away from a courtroom) timing across courtrooms. A courtroom is the specific room in a court, which is in a court complex, where a single judge presides and cases are heard. Court complexes typically contain several courts, which are in turn composed of courtrooms at the same level. For instance,

[9] To scrape the case-level data, we relied on the listing of the over 7 million cases filed between 2015 and 2018 in Uttar Pradesh provided in Ash et al. (2025). Our new scrape yielded fields absent in the public release of the original dataset, including the courtrooms associated with the case, and an indicator for whether a case was decided by the end of 2021. We focus on cases filed from 2015 on, when the judge transfer data are consistently reported.

our dataset contains observations for courtroom number 2, at the Civil Judge Junior Division Level or court, in the Bahraich District Court Complex. 2,288 judges served in Uttar Pradesh's courtrooms in the lower judiciary in the period under study. These data are summarized in Appendix Table B1.

The second, case-level dataset provides details on over 7 million cases filed in Uttar Pradesh's lower judiciary between 2015 and 2018. The dataset allows us to thickly describe each case, including the courtroom to which it was assigned, its type (civil, criminal, bail, etc.), the acts and sections that the case was filed under, and the identities of the petitioners and respondents. The data also allow us to document whether the case was decided or pending as of end-2021. These data are summarized in Appendix Table B2.

We enrich our understanding of these big datasets through interviews with India's lower court judges, and by engaging with the limited discussions of the issue in the press and in judicial decisions.

4 Transfers are Frequent

In this section, we provide the first systematic documentation of judge transfers in India. To explore the causes of frequent judge transfers, we familiarized ourselves with the official documentation and secondary literature on the issue, supplemented with interviews with judges. In two empirical exercises, we also look for and fail to find systematic evidence for the politicization of judge transfers. Ironically, we find that a major cause of transfers is the judicial system's attempts to ward off the politicization of judge transfers via a seniority rule used to match judges to courtrooms. This rule results in frequent, rule-based transfers. We use this section to describe our treatment of interest, that is, judge transfers, and motivate our identification strategy, which focuses on judge transfers due to judge retirements.

Our data suggest that judicial transfers are frequent. Across India, judges are transferred across positions once every 11 months. Figure 1 maps the cross- and within-state district variation in judges' time in their postings. It reveals that there is substantial cross and within-state variation in judge transfers. For example, judges in Uttar Pradesh and Andhra Pradesh spend an average of 7 months in their positions, even as judges in Chhattisgarh and Haryana are in their positions for more than double the time. Strikingly, the variation in judge tenure across districts within states is also substantial. The average judge tenure per district in the state of Uttar Pradesh, which is the focus of our analysis, ranges from 5–12 months.[10] To our knowledge, this is the first systematic documentation of the frequency of transfers of lower court judges in India and its spatial variation.

Our courtroom-month data for Uttar Pradesh also allows us to describe the *types* of judge transfers in some detail. While the coding of some transfer types is exact, others are based on informed guesstimates. See Appendix A for details. In our data, 14.4% of transfers occur across districts. A clear set of rules mandates cross-district transfers every three years (in fact, judges spend an average of two years in districts; we discuss possible reasons why this is lower than the mandated three-year term below), and that when judges are transferred, they are moved to non-contiguous districts in a separate zone (the state is divided into zones by an Administrative Committee). Judges are also prohibited from serving in their home districts.

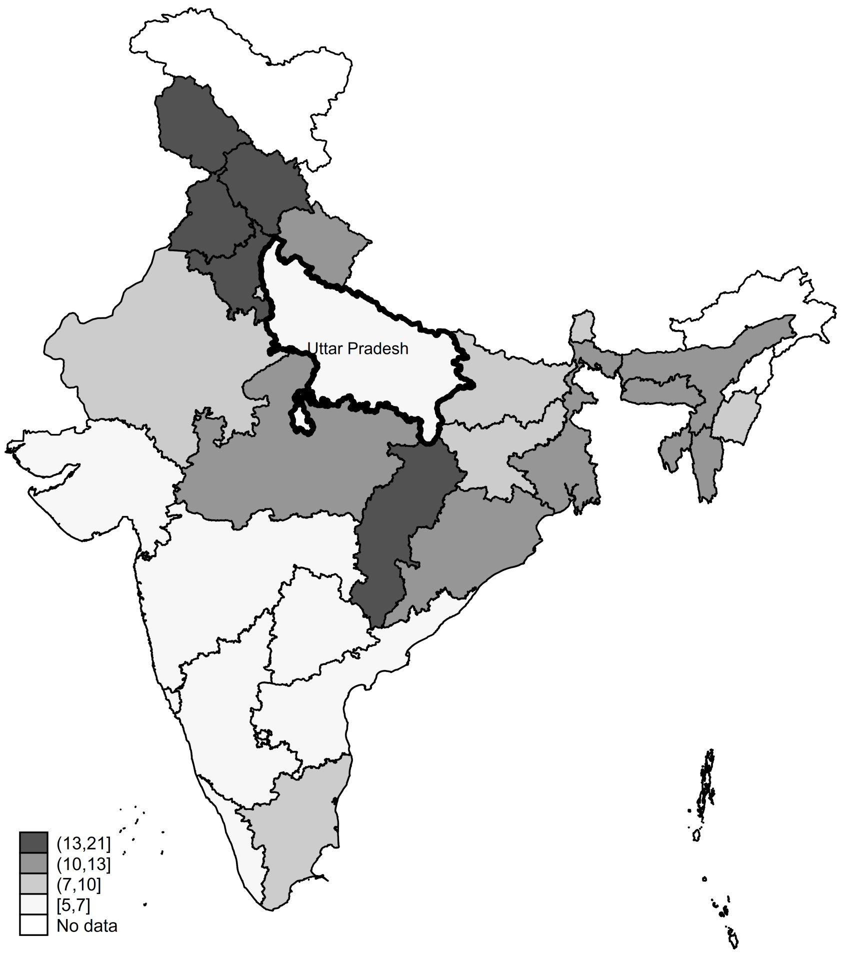
A further 6.4% of transfers are due to judge promotions within districts. These occur approximately five and ten years into the judge careers, respectively. At the five-year mark, judges are promoted from the junior to the senior division. At the ten-year mark, they are promoted from the senior division to the "district and sessions judge" level. An additional 1.6% of total transfers are due to retirements, which occur precisely at the age of 60. As discussed, we leverage the latter rule to help identify the causal effects of transfers. We estimate an additional 20.2% of transfers occur across courtrooms within districts for administrative reasons, to meet the needs of local courts and to ensure the professional development of judges.

By our calculations, the largest category ($\approx$ 57.4%) of transfers are "collateral transfers," prompted by the strict recruitment date-based seniority system followed by the Uttar Pradesh

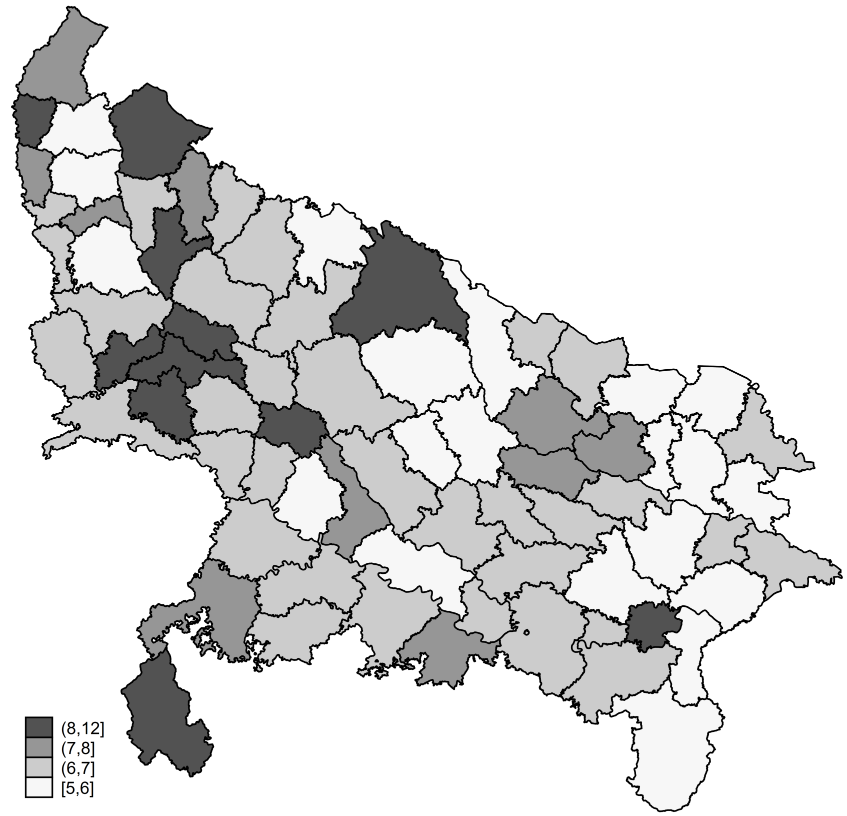
[10] The substantial cross-state variation in the frequency of judge transfers is perhaps unsurprising, as state High Courts (the Indian equivalent of circuit courts in the US) exercise significant administrative discretion over transfer policies within their states. The within-state variation is perhaps more surprising, an issue to which we return below.

Figure 1. Average months judges spend in their postings

(a) India



(b) Uttar Pradesh



Source: Own calculations, based on new judge data scraped from the e-Courts website.

judiciary. This operates as follows. When a judge transfer creates a vacancy in a courtroom, the next most senior judge (that is, the earliest-recruited judge with the same rank) in that court will be moved to the vacant courtroom. This will then create yet another vacancy, which the second next most senior judge will be moved to fill, and so forth. Take the example of the retirement of Judge Vinay Kumar on January 31, 2017, from courtroom number 2 of the District and Sessions Judge Court within the Pilibhit District Court complex. Courtroom 2 remained vacant until February 3, 2017, when a cascading series of transfers began. Courtroom 2 was assigned to Judge Pankaj Kumar Upadhyay, who was moved out of courtroom 3. Courtroom 3 was then filled by Judge Ahasan Husain, who was moved out of courtroom 4. Courtroom 4 was assigned to Judge Vijay Kumar Gupta, who was moved out of courtroom 5. Courtroom 5 was finally assigned to Judge Narendra Pal Singh Tomar as an additional charge, requiring him to manage both courtrooms 5 and 6 simultaneously.[11] The seniority system magnifies the effects of transfers by prompting collateral or cascading transfers in their wake. This is apparent in our data, which, for example, suggests that although only 1.6% of judge transfers are due to retirements, 4.1% are due to the collateral effects of retirements. Consistent with this, retirements lead to more collateral transfers in districts with more courtrooms at a particular level.

A substantial literature in the Global South (Agnihotri et al. 2024; Brierley 2020; Wade 1982) describes how bureaucrats are frequently transferred at the behest of politicians. Such politicization is less likely to exist with regard to lower court judges in our context as judge transfers occur at the behest of senior High Court (the Indian equivalent of US Circuit court) judges, rather than politicians, and since the seniority system substantially shapes precisely which judge is assigned to a courtroom. The latter means that while senior judges and politicians might be able to influence whether a judge is moved out of a court, they are less likely to be able to determine precisely which judge is transferred in.

That said, under conditions of "perverse accountability," rent-seeking politicians might pressure

[11] Moog (1994, 24) observed the operation of this system in the 1980s, remarking that "This occurred in Varanasi District when the civil judge received a promotion to additional district judge and was transferred to another district. The first additional civil judge became a civil judge, and all the other additional civil judges moved up one position."

senior judges to transfer junior judges to influence them. While we suspect that the occasional judge transfer is in fact initiated at the prompting of politicians, our large-n analyses of judges described below fail to yield systematic evidence in favor of politicization. In the rest of this section, we summarize our efforts to explore the possibility that judge transfers are in fact politicized.

First, we take a decomposition of variance approach, originally developed in the economics literature to estimate the effect of teachers and managers (Bertrand and Schoar 2003; Rockoff 2004), to parse the contribution of various factors in explaining judge transfers across space and time. To implement this, we leverage the courtroom-month dataset introduced previously, and model judge transfers as a function of politician, judge, court type, and month-year fixed effects. The null hypothesis—that judge transfers are not politicized—suggests that we should be unable to reject the test of the joint significance of politician fixed effects, and further that politician fixed effects should not explain much of the residual variation in judge transfers.

Our analysis—presented in Appendix Table B3—provides little evidence that transfers are meaningfully politicized. While the joint significance test of politician fixed effects does reject the null at conventional levels, the F-statistic is small in magnitude (1.77) and politician fixed effects jointly explain less than 1% of the variation in judge transfers, suggesting that any political influence over transfers is substantively negligible. Consistent with our identification strategy, which leverages retirement transfers, these effects are even weaker for retirement transfers: the F-statistic falls to 0.65—well below conventional thresholds for rejection—and the explained variation is approximately zero.

Second, we leverage data on judge transfers across courtrooms between 2015 and 2018 to examine whether changes in politician characteristics due to elections are associated with changes in judge transfers. In particular, we note that two subsets of politicians will be particularly likely to influence judge transfers. First, politicians from the ruling party (that is, the party with a legislative majority; this was the Samajwadi Party until March 2017 and the Bharatiya Janata Party thereafter) are likely to be able to influence judge transfers via pressuring the senior judges responsible for judge transfers directly, or indirectly via their influence over the executive. Second, politicians charged with crimes might be particularly keen on transferring judges to obtain favorable judicial outcomes for their cronies or themselves. Politicians might seek the transfer of judges who are assigned to hear their cases, to delay decision-making and/or ensure favorable judicial outcomes (Poblete-Cazenave 2025). Alternatively, if politicians charged with crimes increase criminality more generally because of demonstration effects or because they run criminal enterprises (Prakash et al. 2024), they might seek the transfer of judges in their districts, whether they are assigned to hear their specific cases or not.

This analysis, too, fails to yield clear evidence that judge transfers are politicized along the lines theorized above. To start with, take the hypothesis that ruling party politicians are more likely to be able to transfer judges. A regression discontinuity analysis using close elections between ruling party and opposition politicians fails to suggest that ruling party politicians cause more transfers (see the left-hand panel of Appendix Figure B2).[12] A second discontinuity analysis of close elections between politicians charged with crimes and others also fails to suggest that criminality causes greater transfers (middle panel). Lastly, a regression discontinuity analysis of close elections between ruling party politicians charged with crimes and others also yields insignificant results (see the last panel of Appendix Figure B2).

In sum, two systematic analyses of judge transfers—a decomposition of variance analysis, and examinations of the hypotheses that ruling party and criminal politicians are more likely to transfer judges using the regression discontinuity estimator—fail to provide systematic evidence of the politicization of judge transfers. In other words, while we are unable to rule out the possibility that the occasional judge transfer is in fact politicized, judge transfers in general do not appear to be shaped by politics. This is consistent with the fact that collateral and retirement transfers, which together account for an estimated 73.7% of transfers, occur based on rules and are therefore depoliticized. That said, due to an abundance of caution, in the next sections, we estimate both the

[12] To assign courtrooms to single member districts or constituencies and their politicians, we use data on case origins. So if a courtroom mostly hears cases from a constituency, data on politicians from that constituency will be matched to that courtroom.

effect of all judge transfers and the effects of judge transfers due to retirements, which we know are predetermined.[13]

5 Transfers Reduce Courtroom Productivity

To examine the effects of transfers on courtroom productivity, we estimate equation 1 using the dynamic difference-in-difference estimator and the number of cases decided in that month-year as the outcome variable.[14] Since judges in Uttar Pradesh are transferred once every seven months on average, we estimate effects for three months after the transfer and include one pre-treatment placebo, for a total event window of five months. This ensures that the estimation window does not exhaust the average time between transfers, leaving sufficient months in which non-switching courtrooms can serve as credible comparisons. A wider window risks contaminating the control group, as non-switchers may themselves be within the effect window of a recent transfer. That said, any such contamination would bias our estimates toward zero. The results of our analysis are depicted in Figure 2 and are summarized in Appendix Table B4.

The top left panel of the figure shows the estimated effects of total transfers on the number of cases decided. It suggests that the courts issue 5–12 fewer decisions for the three months after transfers. These effects are substantively and statistically significant. Since the average courtroom issued 47 decisions per month, this amounts to an 11–24% reduction in courtroom productivity in each of the three months after a transfer. Cumulatively, courtrooms issued 20 fewer decisions in the 3 months after a transfer.[15] Put differently, courtrooms lose approximately 0.4 months of

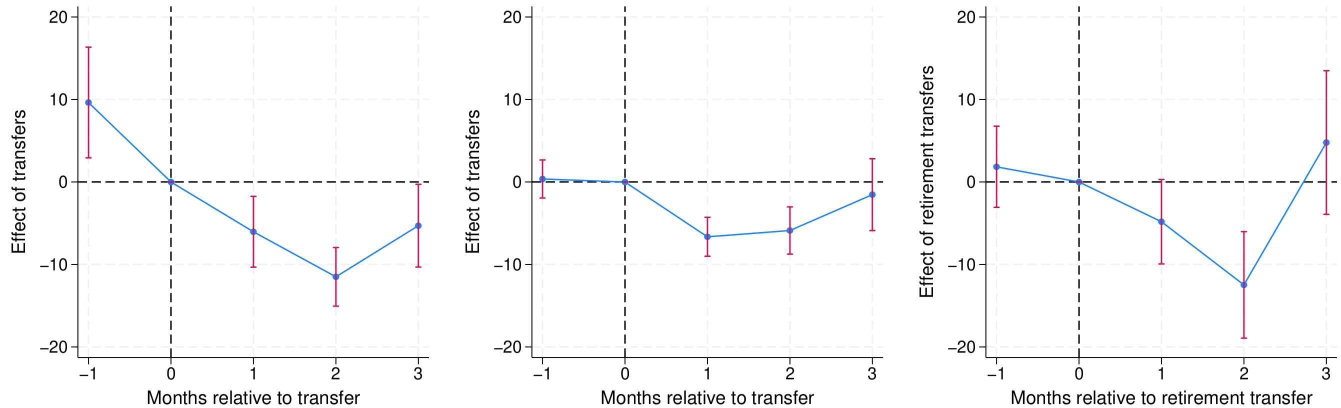
[13] A comparison of bureaucrat and judge transfers is instructive. Although India's senior bureaucrats are also transferred frequently (Iyer and Mani (2012, 75) report the average tenure of Indian Administrative Service officers is 16 months), bureaucrat transfers are arguably more politicized. Politicians, particularly government ministers, help evaluate bureaucrats and have a direct say over their reassignments. Politicians can leverage bureaucrat preferences over places—specifically, their desire to be near their home districts and urban areas—using preferred assignments as carrots and undesirable assignments as sticks to induce compliance (Agnihotri et al. 2024). Although a similar dynamic could obtain with respect to cross-district judge transfers (which constitute 14.4% of the total), the analyses reported above reveal no systematic evidence of such political influence.

[14] We code a case as decided in that month-year based on the date of decision.

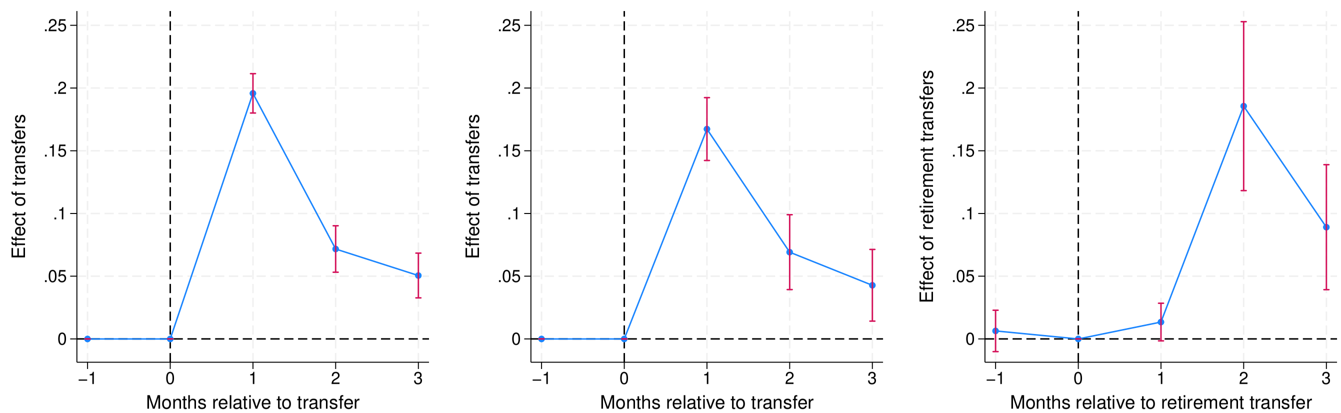
[15] The average cumulative or total effect of transfers is different from the sum of the coefficients because the average total effect is a weighted average of the individual dynamic treatment effects, where the weights are proportional to the number of units observed at each specific lag, rather than a simple unweighted summation.

Figure 2. Transfers reduce courtroom productivity and increase judge vacancies

DV: Number of cases decided



DV: Court vacant (0/1)



Notes: The dependent variables are the number of cases decided (top row) and an indicator for whether the court is vacant or not (bottom row). The data for the plots in the first column cover all courts; the data for the remaining plots cover district courts, which is where judges retire from. The independent variables are indicators of whether the courtroom experiences a transfer (the first two graphs in each row) and a retirement transfer (the last graphs in each row) and their leads and lags. See text for details.

productivity because of transfers.

The estimated effects of transfers are significantly positive in the month prior to their occurrence. Although this is consistent with the positive anticipation effect theorized above (where judges might accelerate the disposal of cases where they have completed hearings) and the fact that transfers are typically announced two to four weeks before they are effectuated, it suggests a violation of the parallel trends assumption that is the basis of the dynamic difference-in-difference estimator.

To address this issue and confirm that transfers do indeed *cause* a reduction in court productivity, we rerun our analysis to focus on the effects of transfers due to retirements rather than all transfers. As described in the research design section, judges retire at precisely 60. We therefore have reasons to believe that retirement transfers are orthogonal to the characteristics of the cases in that courtroom. Since most judges retire from District and Sessions courts, we first restrict our analysis—depicted in the middle panel of the first row—to these courts. The placebo effect is now statistically indistinguishable from zero. As before, transfers decrease the number of decisions issued by courts in the three months after. The average total effect of transfers in the three months after is to decrease the number of decisions issued by 12, which amounts to 0.4 months of lost District and Sessions court productivity.

We plot the estimated effects of retirement transfers in District and Sessions courts in the top right panel of Figure 2. The placebo test for the month before transfers remains insignificant. Retirement transfers decrease the number of decisions issued by District and Sessions courts in the two months after transfers to a statistically and substantively significant degree. Retirement transfers decrease the average total or cumulative number of decisions issued by courts in the three months after by 12. Although similar in magnitude than the effects of all transfers, this estimate is statistically insignificant, which is unsurprising since only 1.6% of transfers are due to retirements. To the degree that frequent judge transfers demotivate judges in general—across the board, whether they are transferred or not—these marginal effects of transfers are likely to be a lower bound.

Notably, across all three specifications—using all transfers across all courts, all transfers across

District and Sessions courts, and retirement transfers across District and Sessions courts—we estimate that the mean transfer causes courts to issue approximately 0.4 months fewer decisions.

Although our findings constitute the first systematic evidence that judge transfers undermine court productivity in India, they are consistent with a small practitioner and journalistic, qualitative literature that also posits a connection between transfers and case delays. For example, in a chapter on "the curse of the revolving docket," Thikkavarapu and Jain (2025) advances such an argument, providing readers with examples of delayed cases that experienced many judge transfers. In an online news article, Barnagarwala (2022) points to the egregious example of an as yet unresolved case that had been pending for over 36 years, and that had been assigned to approximately 12 judges. Judges too seem to be aware of the issue, with a High Court judge observing that transfers have "a serious telling repercussion on the disposal of the pending cases ... It becomes difficult to pinpoint the responsibility if the matter of enquiry is as to who was the officer who neglected to take up the old case. Moreover by the time a new officer familiarises himself with the pendency of the old cases and chalks out a phased programme to decide them, he is shifted to another court" (Allahabad High Court 1998).

To help explain why transfers decrease the number of decisions issued, we explore whether transfers increase court vacancies. Our analysis is presented in the lower panels of Figure 2. Transfers are associated with a greater probability of subsequent vacancies, with the probability that a court was vacant increasing by 20 percentage points in the first month after transfers, by 7 percentage points in the second month, and 5 percentage points in the third month. This effect peters out to insignificance by the sixth month after transfers. Since 7% of courtroom-months are on average vacant, these are substantively large effects. Retirement transfers are associated with similar effects. These results are particularly noteworthy since we expect that vacancies in our administrative data to be undercounted. Vacancies could occur if new judges are not assigned to immediately substitute for old ones (we expect our data to reflect these de jure vacancies), and if newly assigned judges take time to start in their new positions (we do not expect the vacancy data to reflect these de facto vacancies). The estimated effects of judge transfers on decisions and vacancies are apparent in the standard two-way fixed effects estimator too (see Appendix Table B5).

In interviews, judges confirmed our statistical findings, noting that adjusting to new positions takes time and reduces judge productivity in the first few months after transfers (interview J5, August 2022). They also noted that judges with upcoming transfers might defer issuing decisions for cases that are fully heard (interview J1, May 2022), and further that they might defer hearings, particularly for difficult cases (interview J4, July 2022).

While our analysis thus far focused on court-level productivity, the welfare consequences of transfers are largely borne by the parties to cases. For a welfare analysis, the case and not the courtroom is therefore the relevant unit of analysis. Accordingly, we next turn to estimating the effect of transfers on the probability that the 7 million cases in our data will be decided.

To examine the effects of transfers on judicial decision-making, we start by graphically examining the bivariate relationship between the mean transfers experienced by cases in Uttar Pradesh's districts and the probability that a case was decided. Both variables are measured as of end-2021. Figure 3 shows that the two are negatively correlated, suggesting that transfers worsen judicial decision-making.

To rigorously explore this relationship, we employ OLS regressions to estimate equation 2, as summarized in Table 1. Regression 1 in panel A replicates the negative bivariate relationship between transfers and the probability that a case is decided, illustrated in Figure 3. In the next regressions, we add case-specific controls, case-type fixed effects, courtroom fixed effects, their interactions, and filing month-year fixed effects. The fully saturated model, in column 4, suggests that transfers substantially slow decision-making: one judge transfer (that is, a 0.27 standard deviation increase in mean transfers) decreases the chances that a case will be decided by end-2021 by a statistically significant 7.2 percentage points or 9.6%.

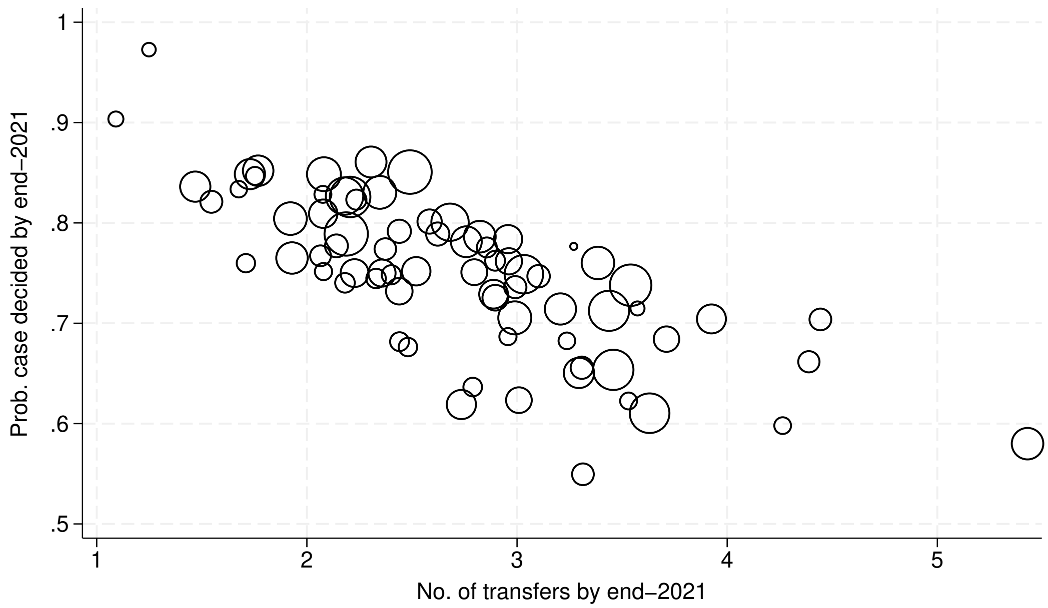
The estimated effects of transfers on the probability that a case is decided by end-2021 is unlikely to be appreciably biased due to reverse causality. To see this, recall that we have over 7 million cases and cumulatively just 10,403 judge transfers. Even if each transfer occurs because

Table 1. Transfers reduce the chances of a case being decided

	Case decided by end-2021 (0/1)				Judge vacancy (0/1)	No. of vacant spells	No. of hearings
	1	2	3	4	5	6	7
Panel A:							
Number of transfers	-0.0783***	-0.0665***	-0.0713***	-0.0722***	0.0104***	0.0151***	3.010***
	(0.00139)	(0.00162)	(0.00176)	(0.00160)	(0.000822)	(0.00117)	(0.0535)
Observations	7253893	7253893	7253635	7253096	7253096	7253096	7215224
Adjusted R-squared	0.44	0.50	0.59	0.61	0.43	0.45	0.69
Panel B:							
Number of retirement transfers	0.0590***	0.0487***	-0.0301**	-0.0414***	0.0447***	0.0700***	6.459***
	(0.0167)	(0.0150)	(0.0141)	(0.0104)	(0.0118)	(0.0186)	(0.580)
Number of other transfers	-0.0795***	-0.0674***	-0.0716***	-0.0724***	0.0101***	0.0147***	2.986***
	(0.00139)	(0.00163)	(0.00181)	(0.00162)	(0.000824)	(0.00116)	(0.0531)
Observations	7253893	7253893	7253635	7253096	7253096	7253096	7215224
Adjusted R-squared	0.45	0.50	0.59	0.61	0.43	0.45	0.69
Dependent variable mean	0.75	0.75	0.75	0.75	0.08	0.11	13.82
Case-specific controls		✓	✓	✓	✓	✓	✓
Case type fixed effects		✓	✓				
Courtroom fixed effects			✓				
Case type X courtroom fixed effects				✓	✓	✓	✓
Filing month-year fixed effects			✓	✓	✓	✓	✓

Notes: The dependent variable is an indicator for whether a case was decided; the independent variable is the number of transfers. Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the parties' gender and whether they are the government. Standard errors clustered by courtroom for regressions in columns 1–3; standard errors are clustered by case type X courtroom for the regressions in columns 4–7. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Figure 3. Cases in districts with more transfers are less likely to be decided



Notes: Data are for Uttar Pradesh. Circle sizes are proportionate to the number of cases filed in each district.

of say two cases, the outcomes of 20,806 out of over 7 million cases (0.29%) would be biased. In other words, the scope for reverse causality is small.[16] That said, our analysis of transfers due to the retirement of judges at precisely age 60 solves this issue. Since retirements are prompted by judges turning 60 and nothing else, reverse causality is a non-issue for this analysis.

To confirm that transfers do indeed *cause* case delays, we disaggregate the total transfers variable into transfers due to retirements and for other reasons. The results of the fully saturated model (Panel B, regression 4) suggest that transfers due to retirements reduce the probability of a case being decided by substantively and statistically significant 4.2 percentage points or 5.5%. Although substantively and statistically significant, these effects are smaller than the estimated effects of other transfers as estimated in the same table.

[16] In addition, sensitivity analysis due to Cinelli and Hazlett (2020) as applied to our main specification with the treatment transformed into a dummy (see column 2 of Appendix Table B8) suggests that an omitted variable would have to explain at least 27.6% of the residual variation in the treatment and outcome to fully account for the observed estimated effect. Such a confounder is highly unlikely in that it would need to explain more than three times the variation explained by (1) case complexity (measured using the number of sections a case is filed under), (2) a dummy for whether the petitioner is female, or (3) a dummy for whether the state is the respondent.

A potential concern with our cumulative transfer measure is that longer-pending cases may mechanically accumulate more transfers while also being less likely to be decided by end-2021, generating a spurious negative association. We address this concern in several ways beyond the design features discussed above. First, in Appendix Table B6, we re-estimate equation two measuring transfers and the outcome within the same (one, two and three-year) window from filing, so that the number of transfers cannot be driven by case duration. These within-window estimates suggest that transfers are in fact most disruptive early in a case's life: an additional transfer in the first year of filing reduces the probability of a decision within that year by 28%, and the effect remains large and significant at 15% within three years of filing.[17]

Second, and most directly, we estimate a hazard model in which transfers enter as time-varying covariates, so that identification comes from changes in a case's exposure to transfers over time rather than from cross-sectional differences in how long cases have been pending. The hazard estimates, presented in Appendix Figure B3 and Appendix Table B7, imply that at any point in time, a case that has experienced a transfer is approximately 41% less likely to be decided than an otherwise comparable case that has not. This substantively large and statistically significant effect is consistent with the linear probability estimates above.

Our results are robust to clustering standard errors at the court rather than courtroom level (this helps account for the correlation between within-court transfers induced by the seniority rule) and to re-specifying the transfer variables as dummies, logging them, and winsorizing them too (Appendix Table B8). Specifying the years-to-decision as the dependent variable (see Appendix Table B9) also yield consistent results, although by definition the latter analysis can only use data on decided cases.

In Table 2, we examine the heterogeneity in the effect of transfers, showing that the negative effects of transfers are remarkably stable across case and court types. In columns 1–4, we examine the degree to which transfers affect cases that are classified into the mutually exclusive, collectively

[17] The within-window results also allow a different reading: the marginal transfer increases the probability that a case will take more than three years to conclude by 15%.

exhaustive categories of civil, criminal, bail and unclassified cases (see Appendix A for coding rules). Transfers decrease the chances of all case types being decided at end-2021, with transfers having similar effects in percent terms on civil and criminal cases. Transfers have a much smaller effect on bail cases, a finding to which we return later.

In columns 5–9, we examine the varying effects of transfers across courts ordered from junior to senior, starting with Junior Division courts and ending with District and Sessions courts and Family courts, which are the senior-most courts in a district and from which judges typically retire. We find that judge transfers are more disruptive to cases filed in junior courts: whereas an additional transfer decreases the chance of a case being decided by 14% in the Civil Judge Junior Division courts, they decrease the chances of a case being decided at end-2021 by 6% in the District and Sessions courts and Family courts.

To examine the mechanisms by which transfers undermine court productivity, we draw on our theory to test whether transfers trigger two of the mechanisms posited therein. First, do transfers cause cases to be unassigned to judges for brief spells, and second, do they cause cases to require additional hearings before being decided.

Column 5 of Table 1 suggests that an additional transfer increases the chances of a case experiencing any vacancy by 13%. Column 6 suggests a similarly large effect if we employ the number of vacancies as the outcome variable. As before, the results are robust to using retirement transfers as the key independent variable. These results are consistent with the courtroom analysis, which showed that transfers increase the chances of a courtroom-level vacancy.

We also test whether transfers cause cases to have more hearings, thereby contributing to judicial delays. While the average case in our data has 14 hearings, regression 7 suggests that each additional transfer causes an additional 3 or 22% hearings (the estimates are larger for retirement transfers). These results are consistent with interviews, wherein judges confirmed that transfers do indeed slow down cases by causing arguments to be re-heard. In an interview, one judge noted: “There have been cases that have been heard by 10 judges, and still no decision has been issued. If a

Table 2. Heterogeneous treatment effects by case type (columns 1–4) and court type (columns 5–9)

	Case decided (0/1)								
Sample:	Civil cases	Criminal cases	Bail cases	Unclassified cases	Civil judge Junior div	Civil judge Senior div	Chief Judicial Magistrate	District and Sessions courts	Family courts
	1	2	3	4	5	6	7	8	9
Panel A:									
Number of transfers	-0.0642***	-0.0758***	-0.0101***	-0.0530***	-0.0890***	-0.0707***	-0.0823***	-0.0504***	-0.0530***
	(0.00215)	(0.00209)	(0.00187)	(0.00298)	(0.00475)	(0.00338)	(0.00283)	(0.00171)	(0.00379)
Observations	880379	4505254	834980	1032483	806123	479447	3756147	1627847	460737
Adjusted R-squared	0.52	0.62	0.13	0.49	0.58	0.59	0.66	0.63	0.28
Panel B:									
Number of retirement transfers	-0.0687**	-0.0230**	-0.00873***	-0.0650***				-0.0797***	-0.0464**
	(0.0272)	(0.0104)	(0.00160)	(0.0168)				(0.0108)	(0.0220)
Number of other transfers	-0.0641***	-0.0760***	-0.0101***	-0.0528***	-0.0890***	-0.0708***	-0.0823***	-0.0498***	-0.0531***
	(0.00239)	(0.00211)	(0.00189)	(0.00305)	(0.00475)	(0.00338)	(0.00284)	(0.00179)	(0.00392)
Observations	880379	4505254	834980	1032483	806123	479447	3756147	1627847	460737
Adjusted R-squared	0.52	0.62	0.13	0.49	0.58	0.59	0.66	0.63	0.28
Mean dependent variable	0.63	0.71	1.00	0.85	0.62	0.81	0.73	0.82	0.87

Notes: The independent variables are defined as transfers until end-2021. All regressions control for indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, indicators for the parties' gender and whether they are the government, case type X courtroom fixed effects, and filing month-year fixed effects. Judges retire from the District and Sessions courts and Family courts. Standard errors clustered by case type X courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

judge is transferred after arguments have been heard once, sometimes – but not always – arguments need to be re-heard" (interview J1, May 2022). Another judge noted that "Most orders require to be re-heard – a new judge may have a new angle to a case" (interview J3, July 2022).

Together, these results provide support for both hypothesized mechanisms: transfers increase the chances that a case is unassigned to a judge for a while, and increase the total number of hearings experienced by cases.

6 Reducing the Effects of Transfers

Our analysis suggests that transfers reduce courtroom productivity and increase case delays. Any policy proposal to reduce transfer frequency, however, must weigh these costs against the system's benefits. While relaxing the seniority principle, or limiting its application to within courts rather than court types so as to trigger fewer collateral transfers, would mechanically reduce the number of transfers, such structural reforms may not be politically feasible. We therefore focus on the more immediate solutions suggested by our theory to mitigate the costs of transfers, holding their frequency constant.

First, consider the benefits of better staggering transfers. In Uttar Pradesh, 35% of transfers occur in one batch in April or May due to an Annual Transfer exercise. The remaining transfers occur in a staggered manner throughout the year. In interviews, judges noted the disruptive potential of mass or batch annual transfers (interview J5, August 2022).

Consistent with this account, regression 1 in Table 3 suggests that while both mass and staggered transfers reduce the probability that a case is decided by end-2021, the negative effect of mass transfers is 24% greater than the effect of staggered transfers. The difference in the estimated effects of mass and staggered transfers is substantively and statistically significant, although the effect of the latter is also significantly different from zero. This suggests that spreading transfers throughout the year could attenuate their negative effects. Consistent with our theoretical account of why mass transfers might be more disruptive than staggered ones, we show in the subsequent

Table 3. Possible Fixes: Staggering transfers and rules for the time-bound disposal of cases attenuate the negative effects of transfers

	Case decided (0/1)	Judge vacancy (0/1)	No. of vacant spells	No. of hearings	Case decided (0/1)	
	1	2	3	4	5	6
Number of mass transfers	-0.0922***	0.00634*	0.00702*	3.673***		
	(0.00540)	(0.00327)	(0.00403)	(0.179)		
Number of staggered transfers	-0.0743***	0.0127***	0.0179***	3.006***		
	(0.00250)	(0.00182)	(0.00227)	(0.0811)		
Number of transfers					-0.0721***	
					(0.00160)	
Number of transfers X Bail cases					0.104***	
					(0.00692)	
Number of retirement transfers						-0.0457***
						(0.0114)
Number of retirement transfers X Bail cases						0.0845***
						(0.0211)
Number of other transfers						-0.0723***
						(0.00163)
Number of other transfers X Bail cases						0.104***
						(0.00676)
Observations	7253096	7253096	7253096	7215224	7253096	7253096
Adjusted R-squared	0.61	0.43	0.45	0.68	0.61	0.61
Mean dependent variable	0.75	0.08	0.11	13.82	0.75	0.75

Notes: The independent variables are defined as transfers until end-2021. All regressions control for indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, indicators for the parties' gender and whether they are the government, case type X courtroom fixed effects, and filing month-year fixed effects. Standard errors clustered by case type X courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

regressions that mass transfers are more likely to lead to hearings than other transfers, even as they are less likely to lead to vacancies.

Rules also appear to help. As in other countries, strong norms ensure that bail cases in India are resolved quickly. Consistent with this, regression 5 suggests that transfers do not impede the disposition of bail cases. Regression 6 suggests that this pattern is apparent when considering retirement and other transfers.

Importantly, the policy implications of these findings—undertake staggered rather than mass transfers, and require cases be decided quickly—do not necessitate fewer transfers per se, but rather suggest ways to reduce the negative effects of transfers, whatever their frequency.

7 External Validity

We are able to confirm that our results on the effects of transfers on productivity travel to other parts of India. To show this, recall that Figure 1 showed that lower court judges are transferred frequently across the country. In other words, the problem of frequent transfers is endemic to the lower judiciary nationwide. To examine the productivity effects of transfers, we draw on the case-level data released by Ash et al. (2025), which—for about 11.7% of cases filed between 2015 and 2018—notes the judge that the case was filed under and the judge that the case was decided under. This allows us to code whether each decided case experienced a transfer,[18] but not the precise number of transfers. In Appendix Table B10, we model the time to decision as a function of whether the case experienced at least one transfer and courtroom and month-year fixed effects. Standard errors are clustered at the courtroom level. The saturated model in column 3 suggests that cases that experience a transfer take an additional year to be decided. The model in column 4 shows that this effect is remarkably stable across India's states.[19] Since this analysis lacks the detailed case-level controls available for Uttar Pradesh, our estimates may be more susceptible to confounding, and should be therefore be interpreted as suggestive of the generalizability of our findings rather than as precise causal estimates.

Our theory predicts that transfers will reduce productivity when transfers are frequent, when there is a large stock of pending cases, and when judges—rather than juries—control the pace of case disposal. These conditions are present in many judicial systems worldwide. Some empirical evidence supports this prediction. In Italy, Guerra and Tagliapietra (2017) shows that judge changes reduce case disposal rates, and a recent practitioner study found that they extend the duration of real estat enforcement cases by 37% (T6 Association 2025). In Spain, Rosales-López (2008) finds that judicial turnover reduces the number of resolutions in Andalusian civil courts, and Moral et al.

[18] We thank Nirvikar Jassal for noting this.

[19] In this specification, transfers increased the time to decision in Uttar Pradesh by 0.95 years. Using the same specification on our data yields a similar estimate of 1.3 years.

(2025) document similar effects in Spanish labor courts. In Nepal, Grajzl and Silwal (2020) show that multi-court judging caused by rotation slows case resolution.

Beyond these quantitative studies, practitioner and journalistic accounts from other countries are consistent with our findings. In Kenya, the Law Society warned that mass magistrate transfers could delay justice by up to two years (Standard Team 2015; Orina 2016). In the United States, North Carolina's constitutionally mandated six-month rotation of superior court judges was identified as sufficiently disruptive that the state created a specialized Business Court in 1995 partly to exempt complex cases from it (Paschal 1948; O'Brien 2002). Japan rotates judges every two to three years (Ramseyer 1994), and China has a similar practice (Zhu 2024), though quantitative evidence on productivity effects in those contexts remains limited.

More broadly, the logic of our theory—that the frequent transfer of bureaucrats might undermine productivity—extends beyond judiciaries to bureaucracies where officers manage ongoing caseloads, such as tax administration or regulatory enforcement. We leave empirical investigation of those settings to future work.

8 Discussion and Conclusion

We have theorized and shown—using a variety of research designs—that judge transfers are frequent, and that they slow judicial decision-making. These findings help explain significant case delays and high pendency rates in India.[20] Our results are likely to travel to other parts of the country and world, including to countries as diverse as Spain, China and Kenya where transfers are frequent, there are lots of pending cases, and judges set the pace for case disposal.

The estimated effects of transfers are large. The average transfer—which for the average judge occurs once every seven months—causes a courtroom to issue 20 fewer decisions, which is equivalent to 0.4 months of lost productivity. Transfers slow decision-making as they create

[20] Recall that we had estimated that the average transfer decreased the chances that a case was decided by 7.2%. Since the average case experienced 2.75 transfers, our estimates suggest that transfers will have caused 19.8% of cases to be pending as of end-2021. This is close to the pendency rate of 25% in our data.

court vacancies and increase the hearings needed to decide cases. Better planning and rules for the time-bound disposal of cases can attenuate the negative effect of transfers: staggered transfers have less pernicious effects than mass ones, and bail cases—which are decided quickly—are less affected by transfers.

Our finding that most transfers are collateral transfers suggests that the negative effects of transfers are partly the unintended consequence of the seniority system. This system, which dictates which judges are transferred, when, and where, is a classic depoliticizing mechanism—an "anti-politics machine" (Ferguson 1994)—intended to safeguard judicial independence. That this rule ironically degrades court productivity provides a vivid illustration of how rigid, top-down rules can be counterproductive for complex tasks such as delivering justice (Honig 2018; Scott 2020; Mangla 2024), even as they might have some benefits in terms of depoliticizing judge assignments.

Although transfers could, in principle, reduce judge corruption, increase judicial independence, or broaden judicial experience, it is not clear whether these potential benefits justify the high costs of frequent transfers, particularly when other judiciaries ensured these benefits without frequent transfers. Due to space and data constraints, we leave it to future work to test for the potential benefits of transfers. Other work could also examine variation in judge transfer practices across and within countries.

Comparing the effects of reducing transfers to the effects of hiring more judges, which is a frequently prescribed solution to high case pendency across the developing world, is instructive. Hiring judges requires budgetary outlays and has proved to be difficult in India, including because of the tendency of the exams to be delayed due to litigation (Chandrashekaran et al. 2024). In contrast, reducing judge transfers does not require additional funds and is arguably easier. In Uttar Pradesh, reducing transfers from once every seven months to once every two years—assuming linearity and no general equilibrium effects—would be the equivalent of hiring 96 judges.[21] This is a substantial effect, particularly since the government has not been able to hire very many judges in recent years despite having over 1,000 vacancies.[22]

A major innovation of our study is to extend the study of the bureaucracy, which has thus far focused on the executive, to the judiciary. In so doing, we show that judges suffer from the same pathology—frequent transfers—as do bureaucrats in many countries. Although the literature on bureaucratic transfers has suggested the possible negative consequences of frequent transfers, it has difficulty estimating such effects because bureaucratic output is varied and is therefore difficult to measure systematically. Since all judges decide cases, switching focus to judges solves this problem, allowing us to document some of the welfare costs of frequent transfers.

Our paper furthers the small, new, data-driven literature on the Indian judicial system, extending it to the major and understudied issue of judicial delays. Whereas much of the policy literature on judicial delays notes that the system is severely underresourced, we show that the system can do more with its existing resources by simply reducing the frequency of judge transfers, which would boost court productivity.

The problem of judicial delays is not unique to India but plagues rich and poor countries worldwide. By tracing the effects of the frequent transfer of judges on case disposals, we extend the broader comparative literature on this issue, which has focused on the effects of factors such as technology and case complexity. In contrast, we argue that a major cause of judicial delays is the seemingly innocuous frequent transfer of judges.

[21] To see this, note that judges are currently transferred an average of once every 7 months or 1.7 times a year. Reducing this to once every two years or 0.5 times a year would reduce transfers by 71%. In our data, there were 3,855 transfers in 2018. Since the average transfer causes courts to issue 19.8 fewer decisions in the three months after the transfer (for this guesstimate, we use the estimates from the first model in Figure 2; since all three models in this Figure suggest that judges lose approximately 0.4 months of productivity due to transfers, similar results obtain if we use the other models), reducing the number of transfers by 71% would—assuming linearity and no general equilibrium effects—increase the number of decisions issued by 54,194, which is the annual output of 96 judges.

[22] Uttar Pradesh hired 196 lower court judges in 2020, 182 judges in 2021 and 5 judges in 2022.

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Appendix for "Musical Chairs: Frequent Judge Transfers Undermine Court Productivity in India"

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A Data Construction Appendix

A.1 Background

Organization, Hierarchy and Recruitment of Judges: The judicial system in India is hierarchically organized into three levels—the Supreme Court (at the highest, national level), the High Courts (at the state level) and the District Courts (at the administrative district level). The district courts are also often known as the *lower judiciary* and are the first line of complaint or courts of first instance for litigants. These courts are the focus of our paper.

India's lower judiciary is organized hierarchically. On the civil side, the lowest-ranking judges preside over Civil Judge Junior Division courts—positions typically held by newly recruited judges—and are promoted after approximately five years to Civil Judge Senior Division courts. On the criminal side, the lowest-ranking judges preside over Judicial Magistrate courts. Above both the civil and criminal divisions sit the District and Sessions courts, whose judges are the most senior in the district and hear both civil and criminal matters. Judges at each level are generalists who can be transferred across courtrooms at the same level, and judges of sufficient seniority can be promoted upward through this hierarchy. Judges are either recruited directly from law schools through a comprehensive examination process to the lowest rank, or can be recruited at a higher rank from the bar following years of legal practice. At any point in time, judges can be assigned to civil, criminal, family, or revenue courts. The jurisdiction of courts depends on the severity of the case: more serious cases are heard in more senior courts.

Organization of Courts: In Uttar Pradesh, the 74 courts districts contains one or more courts, each of which is composed of individual courtrooms. A courtroom is the specific room where a single judge presides and cases are heard. There are 502 courts and 3,044 courtrooms across Uttar Pradesh. Each judge is typically assigned to one courtroom within a court, where they hear the cases assigned to them. Some judges are assigned to more than one courtroom, usually temporarily.

Judge Positions and Transfers: A judge's position is their assignment to a particular courtroom. The Allahabad High Court determines the rules for transfers of judges in Uttar Pradesh, wherein a judge is moved out of their current position and assigned to a new position. According to the rules, a judge is to be transferred out of a district on the completion of three years.[1] Additionally, judges are also transferred within districts to different positions. From our data, we see that each position roughly lasts for an average of 7 months before a judge is transferred.

A.2 Steps to build the case-level dataset

Our data collection process involved compiling several sources of publicly available data and scraping court records from the websites of eCourts India. We describe the process below.

Step 1: Obtaining cases filed in Uttar Pradesh We collect case data for every district court in Uttar Pradesh from the Indian e-Courts platform[2]—a public-facing website that includes case-level and hearing-level data about all cases filed in the courts, and judge-level datasets. To put together this dataset, we first use the eCourts identifiers (CINOs) from the judicial data put together

[1] Or two years for an outlying court (a court outside the district headquarters), or at Sonbhadra district.

[2] Source: `https://services.ecourts.gov.in/ecourtindia_v6/`.

by Development Data Lab.[3] This includes 8.7 million cases filed between 2015 and 2018. We augment the case data with additional data and conduct a thorough de-duplication exercise. The process is described below.

Step 2: Augmenting case-level dataset with additional information For the 8.7 million cases, we re-lookup and scrape additional information about each case to augment the publicly available data with information on hearings, case-level, and court-room metadata. The hearings data includes the dates and purpose of hearings. The case-level metadata includes case-related information like information about litigants, lawyers, and the police station wherein the complaint was filed (in case of criminal cases). Finally, the court-room level metadata helps us match each case to the courtrooms to which it has been assigned over time.

We used the computing resources made available by the Center for High Throughput Computing at UW–Madison to clean and augment the raw data with additional data by scraping the `dcourts` websites. The servers ran a simple Python script that pinged the server of one of the 74 `dcourts` websites with the case identifier of one of the 8.7 million cases, and saved the raw HTML response.

We were able to download the raw HTML files for 7.7 million cases, which is 88% of the 8.7 million cases. The cases that could not be looked up were due to server errors. These HTML files were further cleaned and organized using scripts written in Python, producing a preliminary case-level dataset.

Step 3: De-Duplication of cases For the analysis, it is necessary to uniquely identify cases. However, when cases are moved from one court to another, they are typically assigned new identification numbers. There are two scenarios wherein cases move from one court to another.

The first type is when a case moves across courtrooms within the same court type. For such cases, no new case identification number is assigned. While these are not assigned new case numbers, this movement of cases across courtrooms is important to capture for Step 5, wherein we aggregate the case-level data to create a courtroom-level dataset.

The second type is when a case is transferred across courts—from one court type to another court type. For example, a case can move from the Judicial Magistrate court to the Chief Judicial Magistrate court, and get assigned a new case number. In 2023, the eCourts website updated its data with information on the case mappings for such cases wherein the original case number was listed against a new case number, indicating it was indeed the same case. We scraped this data that would help us match and handle these duplicate entries to obtain a single identifier for a case record that allows us to determine the filing date, decision status, and decision date (if available) for each unique case. There are 0.3M such cases in our data. On performing this de-duplication step and restricting the dataset to the period between 2015 and 2018, we end up with 7.4 million unique case records.

Step 4: Case Classification For the 7.4 million cases filed, we use the case information to classify the types of cases: (1) Civil Cases (2) Criminal Cases (3) Bail Cases and (4) whether the state is a party to the case. These can sometimes be overlapping categories.

We identify civil and criminal cases by using the case metadata (more specifically, we use information about the case type, act, section and FIR details, if available). Broadly, cases under

[3] Source: `https://www.devdatalab.org/judicial-data.`

the Civil Procedure Code are classified as civil cases, while those filed under the Indian Penal Code or Criminal Procedure Code are classified as Criminal Cases. Using the case-level metadata, 85% of the cases can be classified to be either civil or criminal. 12% are identified as civil, 73% are identified as criminal, whereas the case types for the remaining 15% could not be determined. Further, we identify bail cases based on the case type information in the case-level metadata.

For each case, we create clean categories for the act under which a case is filed. The most frequent acts for cases are the Indian Penal Code, Civil Procedure Code, Criminal Procedure Code, and the Motor Vehicles Act. For each case, we use the information on sections to count the number of sections under which the case has been filed. Finally, we use the gender of parties as coded by the neural net gender classifier (Ash et al. 2025).

Finally, we identify the state as a party in the case by looking at whether the petitioner or respondent is either the 'UP Government' or the 'Indian Government.' A little over 4% of civil cases involve the state—examples of such cases include complaints under the SC / ST Act. All criminal cases have the state as an involved party.

Step 5: Information about case decision We code a case as decided if we observe a date of decision that is before 31 December 2021. Of the 7.4 million cases, 75% have been decided.

Step 6: Aggregating to Court-Room Level Data The case-level data can be aggregated and summarized at the court-room level. We produce a month-year dataset for all 3044 courtrooms in our data, out of which we observe the transfer data and case-level data for 2549 courtrooms (84%). We matched 99.8% of our case-level dataset to courtrooms.

A.3 Creating judge-positions panel to identify transfers

Source: We also obtain data on judges in the Uttar Pradesh District Courts, which is used to calculate our main independent variable on transfers. We obtain these from two sources: first, from the website of the Allahabad High Court, and second, from the eCourts platform.

Judge profile data from the Allahabad High Court's website includes detailed data on judge profiles—this includes information about a judge's background, like date of joining, date of promotions, gender, qualifications, and importantly, the date of retirement. Since this information is not available for (now) retired judges, we first tried to obtain this data by filing requests under the "Right to Information" Act. Our request was rejected, so we scraped this data from the Wayback Machine, which allowed us to obtain judge profiles data for both current and retired judges. To do this, we first scraped the entire history of each available update to the 74 District Court web pages. Each instance of a District Court web page shows the judges currently serving in the court, with links to their profile pages. Once we assembled all the links to judge profiles, we used the Wayback Machine API to obtain the latest, most comprehensice version of the judge's profile. This gives us judge profiles to 2987 judges.

Data from the eCourts platform includes the judge's name, their designations, and the start and end dates of appointments as assigned to a courtroom. This information, on the start and end dates of courtrooms that judges were presiding, allows us to link the judge data back to cases. We matched each judge name to the scraped judge profiles data, with a 96% match rate. This allows us to learn precisely when judges were promoted and retired.

Transfers: We use the information on judges' start and end dates in each courtroom from the eCourts data to create our main independent variable on transfers. We use the end date of a judge in a courtroom to determine that a judge has been moved out of a courtroom in a given month and year. We use this panel of judge positions to compute whether a courtroom experiences a transfer during a month-year, and to compute whether a case experiences a transfer.

Courtroom level: A court experiences a transfer during a month-year, if our judge-position date captures an end in a judge's position in that courtroom during the month-year.

Case level: We count the number of transfers (number of judges transferred out of a courtroom) experienced by a case from its filing date to end-2021 (if the case is undecided) or from its filing date to the decision date (if the case is decided). If the case is transferred to another courtroom with the same judges only during a consecutive spell, it is not considered a transfer.

A.4 Coding transfer types

The distribution of transfers presented in Section 4 is derived using a combination of observed counts and imputed estimates. As described below, we directly observe and code four specific categories of moves: (1) retirement transfers (1.6% of all transfers), (2) collateral transfers explicitly due to those retirements (4.1%), (3) promotion transfers (6.4%), and (4) inter-district transfers (14.4%).

To estimate the remaining categories of transfers, we calculate an observed cascading or 'collateral multiplier' from the retirement data. The ratio of retirement-induced collateral transfers to retirement transfers is $4.1/1.6$, which suggests that each primary move generates approximately 2.6 collateral transfers. Whereas retirements occur from the District and Sessions Courts, which typically have an average of 12.8 courtrooms, other transfers could occur from any court, which has an average of 6.5 courtrooms. We therefore scale the collateral multiplier for non-retirement moves by the relative density of the courtrooms ($6.5/12.8 \approx 0.5$), resulting in a system-wide collateral multiplier of 1.3.

We impute the collateral effects of inter-district transfers and promotions within districts by applying this multiplier to their respective counts, yielding estimates of 18.7% and 8.3%, respectively. The remaining are administrative transfers and their associated collateral effects. Administrative transfers could occur to meet the needs of local courts and to ensure the professional development of judges.

Table A1 summarizes our calculations of transfer types, distinguishing between counted and imputed figures. It suggests that a majority of transfers are collateral transfers, prompted by other transfers.

Retirement Transfers

Courtroom level: From the judge profiles, we obtain precise dates of retirement for each judge in our data. Using this date of retirement, we determine that a courtroom experiences a transfer due to a retirement during a month-year.

Case level: We count the retirement transfers as the number of judges' retirements (which is a subset of total transfers) that a case experienced between filing until decision date or end-2021 if the case is undecided by the end of 2021.

Table A1. Consolidated Transfer Distribution: Observed and Imputed Estimates

Transfer Type	Primary (%)	Collateral (%)	Total (%)
Inter-district	14.4[a]	18.7[b]	33.1
Promotion	6.4[a]	8.3[b]	14.7
Retirement	1.6[a]	4.1[a]	5.7
Other / Administrative	20.2[c]	26.3[c]	46.5
Total	**42.6**	**57.4**	**100.0**

[a] Observed counts from raw data coding.

[b] Imputed using size-adjusted multiplier (1.3) based on courtroom density.

[c] Derived by applying the 1.3 multiplier to the 46.5% residual category balance.

Promotion Transfers

Courtroom level: From the judge profiles, we obtain precise dates of promotions for each judge in our data. Judges can be promoted from the Junior to Senior Level, or Senior to District Judge level. Using these dates of promotions, we determine that a courtroom experiences a transfer due to a promotion during a month-year.

Case level: We count the promotion transfers as the number of times the judges working on cases promoted to a higher position that a case experienced between filing until decision date or end-2021 if the case is undecided by the end of 2021.

Collateral Transfers due to retirements

Courtroom level: On computing the transfers that are due to retirements (described above), we determine the courts that experienced the transfers due to a retirement. If courtrooms within these courts experience a transfer of judges in the current or next month, we code these transfers as those that are collateral transfers due to retirements.

Thus, using the list of courts that experience retirements, we determine that a court experiences a collateral transfer due to retirements during a month-year, if our judge-position date captures an end in a judge's position in a courtroom in the same court during the month-year due to retirements. In this case, all transfers in courtrooms inside this court type are marked as collateral transfers due to retirements only.

Case level: We count the number of transfers that a case experienced, which were also classified as being collateral transfers due to retirements only.

Inter-district transfers

Courtroom level: Since we have a panel of judge positions, we used information on a judge's next position to determine whether the transfer moved a judge across districts, across court complexes, or across courtrooms. The next position can be a transfer to a new district (District Transfers), transfer to another court complex within the same district (Court Complex Transfer), transfer to a courtroom within the same court complex and district (Courtroom Transfer). For some transfers (33%), their types based on the next position cannot be determined.

Case level: We count the number of transfers that a case experienced, which were also classified as being one of the transfers in the four categories.

Table A2. Transfer based on next position

Type	Count
District Transfer	1499
Court Complex Transfer	94
Court Type Transfer	1861
Courtroom Transfer	3619
Unknown	3330

Mass and Staggered Transfers

We obtained data from the Allahabad High Court for information on transfer cycles. Typically, judges are transferred away from their districts every 2-3 years.

Courtroom level: We code the transfer cycles for each year using the notifications shared by the Allahabad High Court each year. We document the entire transfer cycle for mass transfers each year from 2010 to 2018 (the official PDFs have been locally archived). Specifically, for each year, we note the month when the transfer notification was released, when the transfer orders announcement was made, and the date by which the new position would need to be taken up. This allows us to code each transfer as either a part of a mass transfer or a staggered transfer.

We code that a courtroom experiences a mass transfer during the month-year, based on the month in which the new positions need to be taken up, as per the Annual Transfer Cycle. That is, mass transfers are those that occurred in April 2015, May 2016, May 2017 and April 2018.

Case level: For each transfer that a case experienced, depending on the month-year, we classify them as being mass transfers or staggered transfers. The mass transfers are the number of transfers that occurred in April 2015, May 2016, May 2017 and April 2018, whereas staggered transfers are those that occurred in other months.

B Supplemental Figures and Tables

Figure B1. Distribution of transfers across courtrooms and over time

Source: Own calculations, based on the courtroom-month dataset.

Table B1. Summary statistics for Uttar Pradesh courtroom-level analysis

	Obs.	Mean	Std. Dev.	Min.	Max.
Number of cases decided	103,583	46.96	132.10	0	5375
Court vacant (0/1)?	103,583	0.07	0.26	0	1
Transfer month	103,583	0.10	0.30	0	1
Retirement transfer month	103,583	0.00	0.04	0	1

Notes: The data include one observation for each courtroom-month-year between 2015 and 2018.

Table B2. Summary statistics for Uttar Pradesh case-level analysis

	Obs.	Mean	Std. Dev.	Min.	Max.
Prob. case decided by end-2021	7,253,893	0.75	0.43	0	1
Prob. case decided within 1 year of filing	7,253,893	0.53	0.50	0	1
Prob. case decided within 2 years of filing	7,253,893	0.64	0.48	0	1
Prob. case decided within 3 years of filing	7,253,893	0.70	0.46	0	1
Prob. case experienced a vacancy	7,253,893	0.08	0.28	0	1
Number of vacant spells	7,253,893	0.11	0.39	0	9
Number of transfers	7,253,893	2.75	3.67	0	48
Number of retirement transfers	7,253,893	0.03	0.21	0	5
Number of other transfers	7,253,893	2.71	3.64	0	48
Number of transfers within 1 year of filing	7,253,893	0.83	1.16	0	14
Number of transfers within 2 years of filing	7,253,893	1.51	1.95	0	19
Number of transfers within 3 years of filing	7,253,893	2.06	2.64	0	32
Number of retirement transfers within 1 year of filing	7,253,893	0.02	0.14	0	3
Number of retirement transfers within 2 years of filing	7,253,893	0.03	0.17	0	3
Number of retirement transfers within 3 years of filing	7,253,893	0.03	0.19	0	4
Number of mass transfers	7,253,893	0.70	1.08	0	11
Number of staggered transfers	7,253,893	1.58	2.28	0	25
Number of sections	7,253,893	1.69	1.52	0	32
Sections missing	7,253,893	0.07	0.25	0	1
Bailable crime	7,253,893	0.10	0.31	0	1
Nonbailable crime	7,253,893	0.10	0.30	0	1
Petitioner: State	7,253,893	0.12	0.33	0	1
Petitioner: Government of India	7,253,893	0.00	0.01	0	1
Petitioner: Uttar Pradesh	7,253,893	0.04	0.19	0	1
Petitioner: Female	7,253,893	0.14	0.35	0	1
Petitioner: Gender missing	7,253,893	0.54	0.50	0	1
Respondent: State	7,253,893	0.03	0.18	0	1
Respondent: Government of India	7,253,893	0.00	0.01	0	1
Respondent: Uttar Pradesh	7,253,893	0.01	0.11	0	1
Respondent: Female	7,253,893	0.10	0.30	0	1
Respondent: Gender missing	7,253,893	0.20	0.40	0	1
Civil cases	7,253,893	0.12	0.33	0	1
Criminal cases	7,253,893	0.62	0.49	0	1
Bail cases	7,253,893	0.12	0.32	0	1
Other cases	7,253,893	0.14	0.35	0	1
Cases in Family Courts	7,253,893	0.06	0.24	0	1
Cases in Civil Judge Junior Division Courts	7,253,893	0.11	0.31	0	1
Cases in Civil Judge Senior Division Courts	7,253,893	0.07	0.25	0	1
Cases in Chief Judicial Magistrate Courts	7,253,893	0.52	0.50	0	1
Cases in District and Sessions Courts	7,253,893	0.22	0.42	0	1

Notes: The data include one observation for each case filed in Uttar Pradesh's lower courts in 2015–2018.

Table B3. Do politician fixed effects explain variation in judge transfers?

Dependent variable	Adjusted R^2	Δ Adjusted R^2	F-stat	Pr > F	N
Transfers	0.190	0.005	1.77	0.000	79835
Retirement transfers	0.063	-0.003	0.65	1.000	79835
Collateral transfers	0.029	0.008	2.02	0.000	79835
Other transfers	0.194	0.005	1.78	0.000	79835

Notes: For each dependent variable, column 1 reports the adjusted R^2 from an OLS regression with judge, month–year, and case-type fixed effects. Column 2 reports the change in the adjusted R^2 with the addition of politician fixed effects. Columns 3 and 4 report the F-statistic and p-value from tests of the joint significance of politician fixed effects. The last column reports the number of observations in each regression. Whereas politicians fixed effects explain some of the variation in total, collateral, and other transfers, they explain no variation in retirement transfers. See text for details.

Table B4. Transfers reduce courtroom productivity and increase judge vacancies (dynamic difference-in-difference estimator)

Dependent variable:	Number of cases decided			Court vacant(0/1)		
Treatment variable:	Any transfers	Any transfers	Retirement transfers	Any transfers	Any transfers	Retirement transfers
Sample:	All courts	District courts	District courts	All courts	District courts	District courts
	1	2	3	4	5	6
Effect_1	-6.041***	-6.648***	-4.818*	0.196***	0.167***	0.0135*
	(2.190)	(1.204)	(2.611)	(0.008)	(0.013)	(0.008)
Effect_2	-11.50***	-5.888***	-12.48***	0.0717***	0.0692***	0.186***
	(1.811)	(1.460)	(3.295)	(0.009)	(0.015)	(0.034)
Effect_3	-5.304**	-1.536	4.782	0.0506***	0.0428***	0.0891***
	(2.559)	(2.221)	(4.444)	(0.009)	(0.015)	(0.025)
Placebo_1	9.632***	0.363	1.840	0	0	0.00639
	(3.422)	(1.177)	(2.508)	(.)	(.)	(0.008)
Av_tot_eff	-19.80***	-11.80***	-12.41	0.276***	0.234***	0.286***
	(4.590)	(3.289)	(8.657)	(0.021)	(0.032)	(0.054)
Dependent variable mean	46.96	31.30	31.30	0.07	0.05	0.05
Courtroom fixed effects	✓	✓	✓	✓	✓	✓
Month-year fixed effects	✓	✓	✓	✓	✓	✓

Notes: Standard errors clustered by courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. The analyses in this table employ the dynamic difference-in-difference estimator due to De Chaisemartin and d'Haultfoeuille (2024) and correspond to the graphs presented in Figure 2. See text for details.

Table B5. Transfers reduce courtroom productivity and increase judge vacancies (two-way fixed effects estimator)

Dependent variable:	Number of cases decided			Court vacant(0/1)		
Treatment variable:	Any transfers	Any transfers	Retirement transfers	Any transfers	Any transfers	Retirement transfers
Sample:	All courts	District courts	District courts	All courts	District courts	District courts
	1	2	3	4	5	6
Effect_1	-13.77***	-5.291***	-22.13***	0.0218***	0.0345***	0.134***
	(1.390)	(0.679)	(3.094)	(0.00284)	(0.00418)	(0.0328)
Effect_2	-2.318	-1.899**	-4.207	0.0145***	0.0240***	0.0481**
	(1.674)	(0.781)	(4.133)	(0.00289)	(0.00425)	(0.0227)
Effect_3	-8.622***	-2.686***	-3.872	0.00633**	0.00772*	0.0242
	(1.043)	(0.687)	(4.112)	(0.00309)	(0.00412)	(0.0186)
Effect_4	-7.524***	-0.289	-4.467	-0.00350	0.00322	0.0291
	(1.550)	(0.706)	(3.135)	(0.00286)	(0.00393)	(0.0195)
Placebo_1	-7.439***	-3.193***	-10.42***	0.0460***	0.0467***	-0.0228***
	(1.327)	(0.659)	(2.997)	(0.00276)	(0.00408)	(0.00840)
Placebo_2	1.859	-0.414	-5.959**	0.0423***	0.0437***	-0.0131
	(1.409)	(0.681)	(2.900)	(0.00276)	(0.00402)	(0.0129)
Observations	88484	35028	35028	88484	35028	35028
Adjusted R-squared	0.37	0.54	0.54	0.32	0.22	0.22
Dependent variable mean	48.89	32.12	32.12	0.07	0.04	0.04
Courtroom fixed effects	✓	✓	✓	✓	✓	✓
Month-year fixed effects	✓	✓	✓	✓	✓	✓

Notes: Standard errors clustered by courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Figure B2. Regression discontinuity analysis of the causal effects of ruling party politicians, politicians charged with crimes, and ruling party politicians charged with crimes on transfers

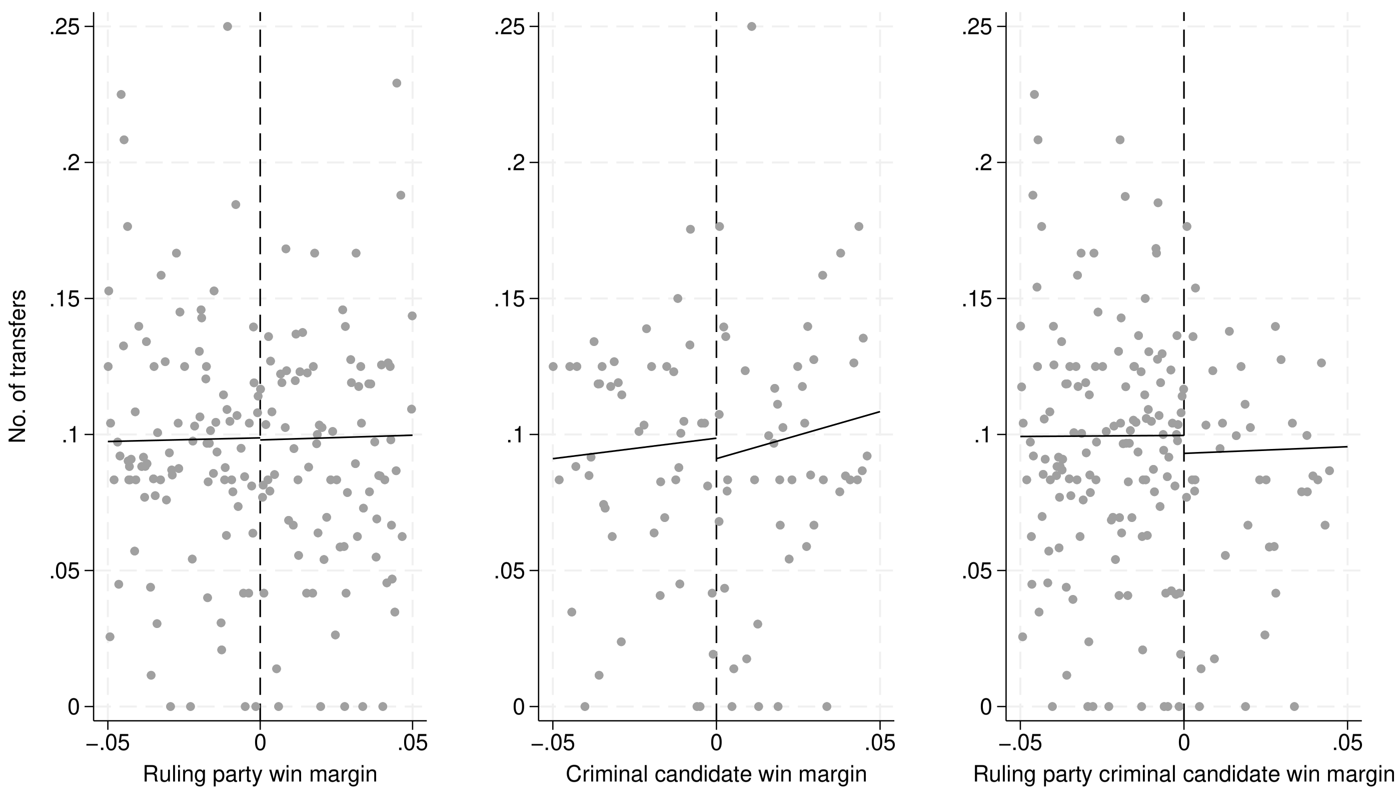
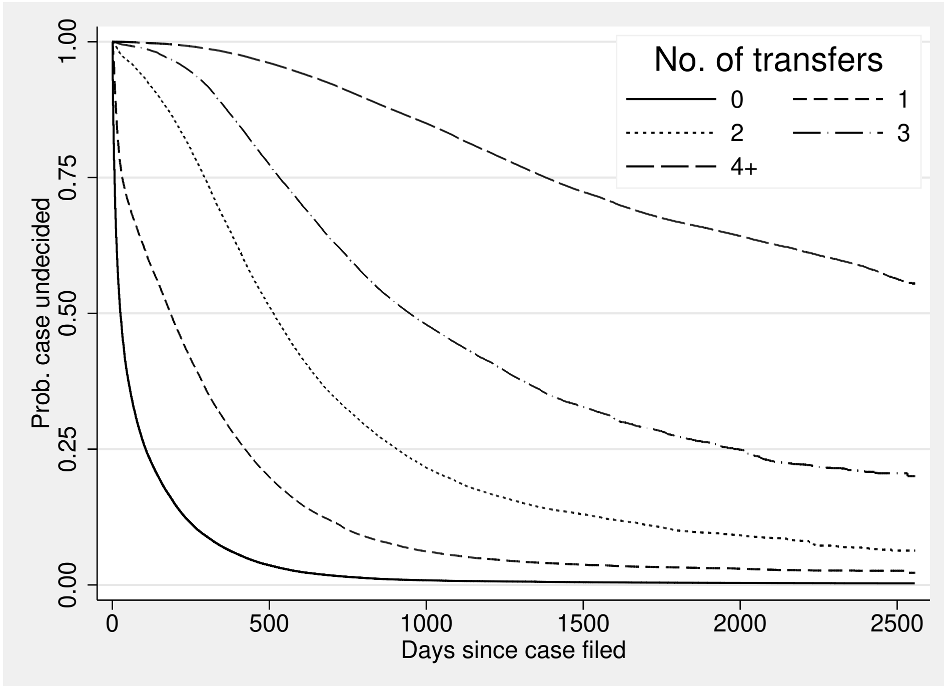


Table B6. Transfers reduce the chances of a case being decided, particularly in the early years

Case decided (0/1) and Number of transfers measured:	1 year since filing 1	2 years since filing 2	3 years since filing 3
Panel A:			
Number of transfers	-0.149***	-0.124***	-0.103***
	(0.00347)	(0.00232)	(0.00170)
Observations	7253096	7253096	7253096
Adjusted R-squared	0.51	0.55	0.59
Panel B:			
Number of retirement transfers	-0.122***	-0.110***	-0.0879***
	(0.0123)	(0.0112)	(0.00998)
Number of other transfers	-0.150***	-0.124***	-0.103***
	(0.00351)	(0.00234)	(0.00172)
Observations	7253096	7253096	7253096
Adjusted R-squared	0.51	0.55	0.59
Dependent variable mean	0.53	0.64	0.70
Case-specific controls	✓	✓	✓
Case type X courtroom fixed effects	✓	✓	✓
Filing month-year fixed effects	✓	✓	✓

Notes: The dependent variable is an indicator for whether a case was decided; the independent variable is transfers. Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the parties' gender and whether they are the government. Standard errors are clustered by case type X courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Figure B3. Robustness test: Hazard plots of time to decision by the number of transfers



Notes: See text for details.

Table B7. Robustness test: Hazard analysis of the effects of transfers on time to decision (coefficients are hazard ratios)

	1	2	3	4
Panel A:				
Number of transfers	0.592^{***}	0.608^{***}	0.455^{***}	0.445^{***}
	(0.00711)	(0.00745)	(0.00981)	(0.00829)
Observations	6723521	6723521	6723476	6723476
Panel B:				
Number of retirement transfers	0.908^{*}	0.836^{***}	0.355^{***}	0.334^{***}
	(0.0491)	(0.0298)	(0.0228)	(0.0230)
Number of other transfers	0.588^{***}	0.606^{***}	0.456^{***}	0.446^{***}
	(0.00700)	(0.00744)	(0.0100)	(0.00839)
Observations	6723521	6723521	6723476	6723476
Case-specific controls		✓	✓	✓
Case type fixed effects		✓	✓	
Courtroom strata			✓	
Case type X courtroom strata				✓
Filing month-year strata			✓	✓

Notes: Coefficients are hazard ratios. A hazard ratio of 0.592 suggests that at any time, a case that experiences a transfer is 40.8% less likely to be decided. Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the parties' gender and whether they are the government. Standard errors clustered by courtroom for regressions in columns 1–3; standard errors are clustered by case type X courtroom for the regressions in column 4. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Table B8. Robustness tests: Transfers reduce the chances of a case being decided

Transfers specified as:	Count 1	Dummy 2	Log 3	Winsorized 4
Panel A:				
Number of transfers	-0.0722***	-0.279***	-0.298***	-0.0863***
	(0.00239)	(0.00954)	(0.00617)	(0.00184)
Observations	7253096	7253096	7253096	7253096
Adjusted R-squared	0.61	0.48	0.60	0.62
Panel B:				
Number of retirement transfers	-0.0414***	-0.0746***	-0.0570***	-0.0370***
	(0.0141)	(0.0111)	(0.0128)	(0.00917)
Number of other transfers	-0.0724***	-0.278***	-0.296***	-0.0862***
	(0.00243)	(0.00934)	(0.00616)	(0.00185)
Observations	7253096	7253096	7253096	7253096
Adjusted R-squared	0.61	0.48	0.60	0.62
Mean dependent variable	0.75	0.75	0.75	0.75

Notes: The dependent variable is an indicator for whether a case was decided; the independent variable is transfers, specified as a count (column 1; this is the same specification as in Table 3 but with standard errors clustered at the court rather than by case type X courtroom), a dummy variable (column 2), logged (column 3) and winsorized (column 4). Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the parties' gender and whether they are the government. Standard errors in columns 2–4 are clustered by case type X courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Table B9. Robustness test: Transfers increase the time to decision for decided cases

	Time to decision (years)			
	1	2	3	4
Panel A:				
Number of transfers	0.376***	0.366***	0.365***	0.367***
	(0.00729)	(0.00763)	(0.00715)	(0.00553)
Observations	5461049	5461049	5460853	5460321
Adjusted R-squared	0.56	0.61	0.71	0.73
Panel B:				
Number of retirement transfers	0.175***	0.252***	0.315***	0.339***
	(0.0670)	(0.0534)	(0.0312)	(0.0230)
Number of other transfers	0.379***	0.368***	0.366***	0.367***
	(0.00709)	(0.00755)	(0.00717)	(0.00558)
Observations	5461049	5461049	5460853	5460321
Adjusted R-squared	0.56	0.61	0.71	0.73
Dependent variable mean	0.84	0.84	0.84	0.84
Case-specific controls		✓	✓	✓
Case type fixed effects		✓	✓	
Courtroom fixed effects			✓	
Case type X courtroom fixed effects				✓
Filing month-year fixed effects			✓	✓

Notes: The dependent variable is the years to decision; the independent variable is the number of transfers. Case-specific controls are indicators for the acts under which cases are filed, variables for the number of acts and sections to which cases refer, and indicators for the parties' gender and whether they are the government. Standard errors clustered by courtroom for regressions in columns 1–3; standard errors are clustered by case type X courtroom for the regressions in column 4. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.

Table B10. External validity: Transfers are associated with an increased time to decision in all states

	Time to decision (years)			
	1	2	3	4
At least one transfer	1.135***	1.070***	0.995***	
	(0.0407)	(0.0385)	(0.0337)	
At least one transfer in Uttar Pradesh				0.946***
				(0.00517)
At least one transfer in Maharashtra				0.969***
				(0.00574)
At least one transfer in Bihar				0.596***
				(0.00233)
At least one transfer in West Bengal				1.097***
				(0.00532)
At least one transfer in Madhya Pradesh				1.128***
				(0.00633)
At least one transfer in Tamil Nadu				1.088***
				(0.00941)
At least one transfer in Rajasthan				1.299***
				(0.0101)
At least one transfer in Karnataka				0.995***
				(0.00641)
At least one transfer in Gujarat				0.806***
				(0.00441)
At least one transfer in Andhra Pradesh				1.032***
				(0.00610)
At least one transfer in Odisha				1.034***
				(0.00523)
At least one transfer in Telangana				0.967***
				(0.00531)
At least one transfer in Kerala				0.815***
				(0.00408)
At least one transfer in Jharkhand				1.061***
				(0.0125)
At least one transfer in Punjab				0.912***
				(0.00702)
Observations	6036575	6036396	6036396	6036396
Adjusted R-squared	0.43	0.50	0.54	0.51
Dependent variable mean	0.39	0.39	0.39	0.39
Courtroom fixed effects		✓	✓	✓
Filing month-year fixed effects			✓	✓

Notes: The independent variables are indicators for whether cases experienced one or more transfers. Standard errors clustered by courtroom. * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. See text for details.